

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF PANTELEYEV AND OTHERS v. RUSSIA

(Applications nos. 64960/19 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

6 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Panteleyev and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The applicants were represented by Memorial Human Rights Centre, a non-governmental organisation which had practiced in Moscow.

3. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

4. The list of applicants and the relevant details of the applications are set out in the appended table.

5. The applicants complained of the disproportionate measures taken against them as participants of a public assembly, namely as participants in manifestations for fair elections to the Moscow City Parliament in August 2019 in Moscow. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

6. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of the public assembly, in particular about the dispersal of the assembly, as well as their arrest followed by their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and

5 others, §§ 121-23, 10 April 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of the organisers or participants of public events; *Karelin v. Russia*, no. 926/08, 20 September 2016, related to examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMAINING COMPLAINTS

14. Having regard to its findings above, the Court does not consider it necessary to examine separately the remaining complaints raised by some of the applicants under Article 6 of the Convention about the fairness of the administrative-offence proceedings in their cases.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

16. Regard being had to the documents in its possession and to its case-law (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints under Article 11 of the Convention concerning the interference with the applicants' freedom of assembly and the other complaints under the well-established case-law of the Court (as indicated in the appended table) admissible and *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention about other aspects of the fairness of the administrative-offence proceedings;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assemblies;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 6 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	64960/19 18/12/2019	**Vladislav Sergeyevich PANTELEYEV** 1994	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 17,000	30/09/2019	Art. 5 (1) – unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.25 p.m. on 10/08/2019 to 01.00 a.m. on 11/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/09/2019.	4,000
2.	65113/19 18/12/2019	**Alisher Firdovsiyevich RZAYEV** 1998	10/08/2019	Article 20.2 § 5 of CAO	20-hour community work	24/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.30 p.m. to 10.20 p.m. on 10/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 24/09/2019.	4,000
3.	65213/19 18/12/2019	**Pavel Petrovich NEVEROV** 1974	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	10/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.40 p.m. on 03/08/2019 to 01.00 a.m. on 04/08/2019; absence of escorting and of administrative detention reports; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 10/09/2019.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Date of the public event	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	65295/19 18/12/2019	**Vasiliy Sergeyevich POPOV** 1994	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	04/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.20 p.m. to 11.30 p.m. on 10/08/2019; absence of escorting and of administrative detention reports; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019.	4,000
5.	201/20 18/12/2019	**Aleksey Vladimirovich ANOSHKO** 1984	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	14/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.35 p.m. to 11.30 p.m. on 10/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/10/2019.	4,000
6.	1779/20 08/01/2020	**Vyacheslav Yevgenyevich KALACHEV** 1993	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	30/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.00 p.m. to 11.00 p.m. on 10/08/2019, while the record of administrative offence was drawn up only on 13/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/09/2019.	4,000
7.	1905/20 27/12/2019	**Aleksandr Nikolayevich PROSHIN** 1994	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	10/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.35 p.m. to 11.40 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 10/09/2019.	4,000

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8.	6721/20 23/01/2020	**Mark Sergeyevich KNYAZEV** 1999	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	28/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; from 5.50 p.m. to 8.40 p.m. on 10/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2019.	4,000
9.	7700/20 23/01/2020	**Aleksey Sergeyevich SOKOLOV** 1998	03/08/3019	Article 20.2 § 5 of CAO	fine of RUB 10,000	18/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.20 p.m. on 03/08/2019 to 01.00 a.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/10/2019.	4,000
10.	8464/20 03/02/2020	**Maksim Anatolyevich ROMANOV** 1998	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	30/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.10 p.m. on 10/08/2019 to 00.30 a.m. on 11/08/2019, while the administrative offence record was drawn up only on 14/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/09/2019.	4,000
11.	11083/20 07/02/2020	**Maksim Olegovich OBYDOV** 1994	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15.000	28/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.55 p.m. to 9.40 p.m. on 10/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2019.	4,000

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12.	11972/20 20/02/2020	**Konstantin Mikhaylovich PERCHENOK** 2000	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	16/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 7.50 p.m. on 10/08/2019 to 04.00 a.m. on 11/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 16/09/2019.	4,000
13.	12189/20 27/02/2020	**Andrey Alekseyevich IVANOV** 1991	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	30/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.50 p.m. to 9.30 p.m. on 10/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/10/2019.	4,000
14.	13346/20 03/03/2020	**Aleksandr Sergeyevich SIDOROV** 1997	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	04/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.20 p.m. to 11.30 p.m. on 10/08/2019; the applicant remained more than 3 hours in the police van before having been brought to the police station; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/09/2019.	4,000
15.	18010/20 23/03/2020	**Aleksey Vladimirovich NAUMENKO** 1983	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	14/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.20 p.m. on 10/08/2019 to 00.30 a.m. on 11/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/10/2019.	4,000

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16.	18237/20 19/03/2020	**Roman Konstantinovich ZAPOLSKIY** 1993	10/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	04/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 6.15 p.m. to 10.10 p.m. on 10/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/10/2019.	4,000
17.	24884/20 22/06/2020	**Aleksandr Mikhaylovich FEDORININ** 1988	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	30/09/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 03.30 p.m. on 03/08/2019 to 02.00 a.m. on 04/08/2019; the applicant remained about 2.30 hours in the police van before having been brought to the police station; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/09/2019.	4,000
18.	27640/20 29/06/2020	**Nikita Olegovich KOLOSOV** 1995	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	06/11/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 05.30 p.m. on 03/08/2019 to 03.30 a.m. on 04/08/2019; the applicant remained detained even after the record of administrative offence had been drawn up; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/11/2019.	4,000
19.	27641/20 25/06/2020	**Pavel Vladimirovich SMIRNOV** 1996	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	28/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. to 9.00 p.m. on 03/08/2019, while the record of administrative offence had been drawn up only on 05/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2019.	4,000

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20.	27642/20 25/06/2020	**Andrey Igorevich TRIFONOV** 1992	03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	30/10/2019	Art. 5 (1) - unlawful deprivation of liberty: escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.30 p.m. to 11.20 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/10/2019.	4,000

[1] Plus any tax that may be chargeable to the applicants.